

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

**2026CUFR063078: MIRA LOMA DEVELOPMENT GROUP, LLC, A CALIFORNIA
LIMITED LIABILITY COMPANY vs JIMONE BEROOKHIM, et al.**

09/17/2026 in Department 20

**Motion to Quash or Modify Plaintiff's Deposition Subpoena for Production of Business
Records to Bank of Hope, Request for Protective Order and Request for Sanctions in the
Amount of \$2,260.00**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. **If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.**

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendants Jimone Berookhim ("Berookhim") and Oxnard 18, LLC's ("Oxnard 18") (collectively "Defendants") Motion to Quash or Modify Plaintiff's Deposition Subpoena for Production of Business Records to Bank of Hope; Request for Protective Order; and Request for Monetary Sanctions against Plaintiff in the Sum of \$2,260.00

Tentative: Defendants' Motion to Quash or Modify Plaintiff's Deposition Subpoena for Production of Business Records to Bank of Hope is DENIED as to the request to quash the subpoena and DENIED as to Defendants' proposed substantive limitations. The request for a protective order is GRANTED in part as set forth below. Both sides' requests for monetary sanctions are DENIED.

Preliminary Matters

The motion was timely filed and served. Defendants filed and electronically served the motion on July 9, 2026, before the subpoena's July 13, 2026 production date and well in advance of the September 17 hearing.

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The parties adequately met and conferred concerning the substance of the dispute. The parties conferred by telephone on July 6, 2026 and discussed, among other things, an Informal Discovery Conference, narrowing the bank discovery to post-sale transactions and disposition of the sale proceeds, and deferring broader discovery. The Court finds the substantive meet-and-confer effort sufficient and declines to deny relief on that basis.

Plaintiff's objection based on Defendants' failure to file a separate statement with the original motion is **OVERRULED**. Rule 3.1345(b)(1) provides that a separate statement is not required when no response has been provided to the discovery request, and Bank of Hope had not responded when the motion was filed. In any event, the separate-statement requirement is not jurisdictional, and the Court has discretion to consider the precautionary separate statement filed with the reply. The Court exercises that discretion here. Plaintiff's September 14 request to disregard the separate statement or continue the hearing is **DENIED**. The Court also exercises its discretion to consider Plaintiff's September 8, 2026 supplemental declaration.

Merits

Code of Civil Procedure section 2017.010 permits discovery of nonprivileged information relevant to the subject matter of the action or reasonably calculated to lead to admissible evidence. Sections 2017.020 and 2019.030 permit or require limitation of discovery that is unduly burdensome, duplicative, disproportionate, or obtainable through a less intrusive source. Section 1987.1 authorizes the Court to quash or modify a deposition subpoena or impose appropriate conditions on production.

Financial records of an LLC are not categorically exempt from discovery. An entity, does not enjoy a constitutional right to privacy. (*Ameri-Med. Corp. v. Workers' Comp. Appeals Bd.* (1996) 42 Cal.App.4th 1260, 1287 (*Ameri-Med Corp.*); see also *SCC Acquisitions, Inc. v. Superior Court* (2015) 243 Cal.App.4th 741 [determining whether requests for production in a judgment debtor examination infringe a third party corporation's right to privacy].) Instead, the privacy right being asserted by Oxnard 18 as to the documents at issue depends on the circumstances in this case. "Two critical factors are the strength of the nexus between the artificial entity and human beings and the context in which the controversy arises. [Citation]." (*Ameri-Med Corp. supra*, 42 Cal.App.4th at 1287-1288.)

Where financial information bears directly on substantive issues relating to alter ego liability such as diversion of assets, commingling, inadequate capitalization, personal use of entity assets, lack of separate records or formalities, common ownership and management, and use of the entity as a shell or conduit, the information may be discoverable notwithstanding Civil Code section 3295's restriction on discovery directed solely to a defendant's financial condition for punitive-damages purposes. (*Flora Crane Service, Inc. v. Superior Court* (1965) 234 Cal.App.2d 767, 778-779; *Doak v. Superior Court* (1968) 257 Cal.App.2d 825, 835, fn. 8; *Rawnsley v. Superior Court* (1986) 183 Cal.App.3d 86, 91-92; *Sonora Diamond Corp. v. Superior Court* (2000) 83 Cal.App.4th 523, 538-539.) The present ruling determines only the permissible scope of discovery and does not determine whether Plaintiff ultimately can establish alter ego.

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Plaintiff has demonstrated a sufficient factual basis for discovery directed to these issues. Plaintiff has obtained evidence concerning Oxnard 18's ownership, Berookhim's control of escrow disbursements, approximately \$1 million in financing associated with Dr. Farzin Khalkhali, and a payoff exceeding \$500,000 from the sale proceeds. These circumstances provide a sufficient basis to investigate capitalization, movement of entity funds, commingling, and the relationship between Oxnard 18's finances and Berookhim. The discovery therefore is not barred as a purely speculative search.

The lengthy period covered by the subpoena does not, on this record, warrant the restrictions requested by Defendants. No declaration from Bank of Hope establishes an unusual retrieval burden, excessive cost, or extraordinary volume, and the requested period largely corresponds to Oxnard 18's existence and operation in connection with the subject property.

Requests Nos. 1-9

As to Request Nos. 1 and 2, the request to limit production to the particular account that received the June 2022 sale proceeds is DENIED. Account-opening documents, corporate resolutions, and signature cards may identify the persons authorized to establish and control Oxnard 18 accounts and may reveal the existence of other entity accounts relevant to funding and transfers.

As to Request Nos. 3 through 7, the request to limit production to documents tracing the June 2022 sale proceeds through December 31, 2023 is DENIED. Account statements, checks, ACH records, wire records, and cash transaction records may reveal capitalization, operating expenditures, transfers to members, loan transactions, or other movement of company funds relevant to Plaintiff's alter-ego allegations. Redaction of otherwise responsive transactions based solely on Defendants' assessment of relevance is not warranted.

As to Request No. 8, the proposed limitation to communications from March 4 through July 31, 2022 is DENIED. The request is directed to the specific escrow transaction, and earlier or later communications may explain financing, payoff instructions, destination of proceeds, corrections, or subsequent explanations concerning that transaction.

As to Request No. 9, the request to quash is DENIED. Although this is the broadest category, it is limited to communications with Bank of Hope concerning the single property that was Oxnard 18's alleged business purpose and is the subject of this action. Such communications may bear on acquisition financing, rental income, improvements, collateral, or sale of the property. The present record does not establish a volume or burden sufficient to justify quashing the category.

Protective Order

Defendants' request for a protective order is GRANTED in part. Requests Nos. 1-9 may proceed subject to the following conditions:

1. Production is limited to responsive records existing through July 13, 2026. The subpoena does not impose a continuing obligation to produce later-created records.

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2. The records shall be used solely for this litigation. Access is limited to counsel and their staff; retained experts, consultants, and litigation service providers who agree to maintain confidentiality; the Court and court personnel; and deposition officers and reporters. Counsel may disclose a particular record to its author, recipient, signatory, or a person whose transaction is reflected in the record when reasonably necessary for testimony or case preparation, after advising that person of the confidentiality restrictions.

3. Social Security numbers, taxpayer-identification numbers, and personal account numbers shall be redacted except for the last four digits. Account identifiers shall remain sufficiently consistent to permit tracing. Dates, amounts, payor/payee identities, and transaction descriptions shall not be redacted merely because a party considers them irrelevant.

4. To the extent responsive materials constitute separately protected consumer records, any independently applicable notice, authorization, or other statutory requirements must be satisfied before disclosure. This ruling resolves the moving Defendants' objections only and does not adjudicate any independent objection by Bank of Hope or another affected person.

Nothing in this order authorizes public disclosure of the records or automatic filing under seal. Any party seeking to file protected material under seal must comply with the applicable California Rules of Court.

Sanctions

Defendants' request for \$2,260 in monetary sanctions is DENIED. Plaintiff's request for \$11,377.50 in monetary sanctions is also DENIED. Although the Court rejects Defendants' proposed substantive restrictions, Defendants had substantial justification to raise legitimate questions concerning the scope and confidentiality of extensive financial discovery. Plaintiff likewise had substantial justification to pursue bank records relevant to the asserted alter-ego theory. The record does not warrant a finding that either side's position on this motion was taken in bad faith or without substantial justification.

Accordingly, the motion to quash or substantively restrict the Bank of Hope subpoena is DENIED; the request for a protective order is GRANTED IN PART on the terms stated above; Plaintiff's request to continue the hearing is DENIED; and both requests for monetary sanctions are DENIED. This ruling does not determine the merits or sufficiency of Plaintiff's alter-ego allegations.

Plaintiff's counsel to give notice.